the board to issue a public statement. Robb recalls that there was no consensus in the board on the issue. He adds that the crisis was hurting the company and that it needed the continued support of Tata Sons. He says emphatically that being a member of the Tata Group brought Tata Steel important benefits, including access to the highest level of governments and the confidence of the financial community. ‘If the principal shareholder expresses a lack of confidence in the chairman of TSL, the board cannot just ignore this fact. It was not tenable for Tata Steel to go against Tata Sons,’ he continues. Mistry’s email, written a day after his ouster, was ‘extremely damaging to both Tata Group and to Tata Steel and contained a number of serious misstatements’. The crisis had caused damage including a ‘significant fall in the Company’s stock and a flurry of regulator and shareholder enquiries’. He stated that ‘every director had a duty to act in the best interests of the company’. To deescalate the crisis, he said that ‘Mistry should consider the interests of the Company and recognise that for him to continue in the Chair was really not possible.’

Faced with the lack of consensus on the issue of the public statement, Wadia made a last-ditch effort and met with the independent directors after the board meeting to get them to issue a statement in their name. When some of them resisted, Wadia ‘tried to add pressure by stating that the independent directors should be mindful of their duties to shareholders which required the publication of the statement’, Robb recalls. He adds that Wadia, in ‘a clear case of attempted intimidation’, then stated that ‘he would write to SEBI explaining he had been prevented from performing his duties’.

Though Wadia’s efforts at the board meeting failed, he became more combative. In the days following the meeting, Robb recalled that Wadia tried to have him, ‘Mallika Srinivasan and Jacques Schraven declared as non-independent so that he could overturn the result of the meetings’. However, he was not successful. But it did not stop him from trying again.

The fourteenth of November turned out to be another action-packed day. Tata Motors held its board meeting to consider the financial results of the second quarter. A day before the meeting, the Tata Motors Employees’ Union, Pune, the company’s single-largest employees’ union with 7,250 members, came out in support of Ratan. In a letter addressed to Guenther Butschek, Tata Motors’ CEO and MD, the union highlighted their ‘deep concern’ over the ongoing rift and said, ‘During this time of turmoil we